

		It appears that an Opposition was belatedly served by Plaintiffs Richard Carlton and Patricia Carlton ("Plaintiffs"), to which Ford has responded here. But no Opposition has been filed. The hearing is therefore continued to 7/9/26, at 1:30 p.m. Plaintiffs are to file the Opposition papers previously served on Ford, along with a declaration stating the reason for the filing error and how/when service on Ford was effectuated, by 6/29/26. Ford may respond thereto, if it deems that necessary, by no later than 7/2/26. No other further briefing is permitted. <i>Ford is to give notice of this ruling.</i>
8.	Silveira v. Boardwalk Office Associates LLC 24-1407563	(Withdrawn)
9.	Corzine v. Riemann 20-1133569	Before the Court are two Motions filed by Defendant David Kent Riemann ("Defendant") on 3/23/26, as follows: (1) Motion to Clarify Scope of Evidentiary Sanctions Related to Local Rule 317 Compliance (Motion 1 below); and (2) Motion for Relief from Evidentiary Sanctions Pursuant to Code of Civil Procedure §473(b) (Motion 2 below). <u>Motion 1</u> seeks "clarification" that Defendant may present "previously disclosed witnesses, documentary evidence, deposition testimony" and defenses consistent with this Court's 3/6/26 order. But as the 3/6/26 Order and the related Minute Order of 2/27/26 reflect, the evidentiary sanction that was imposed precludes Defendant from presenting any documents or witnesses or other evidence at trial which was not timely disclosed in accordance with OCSC Rule 317. To the extent that such evidence was not timely disclosed in accordance with OCSC Rule 317, it is thus barred. <u>Motion 2</u> seeks relief from that evidentiary sanction under C.C.P. § 473(b). But the party seeking relief under the discretionary prong of C.C.P. § 473(b) has the burden of presenting declarations or other evidence showing specific facts to establish "mistake, inadvertence, surprise or excusable neglect." (<i>Hopkins & Carley v. Gens</i> (2011) 200 Cal.App.4th 1401, 1410.) Here, the Motion fails to identify what "mistake, inadvertence, surprise or excusable neglect" occurred, and fails to present any evidence whatsoever. Both Motions are therefore DENIED. <i>Clerk to give notice.</i>
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